

CHAPTER 44.

An Act to assimilate the procedure in all cases of treason and misprision of treason to the procedure in cases of murder.
[15th June 1945.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. The Treason Act, 1800 (which assimilates the procedure in certain cases of treason and misprision of treason to the procedure in cases of murder) shall apply in all cases of treason and misprision of treason whether alleged to have been committed before or after the passing of this Act. Extension of
39 & 40
Geo. 3. c. 93.

2.—(1) The enactments set out in the Schedule to this Act are hereby repealed in so far as they extend to matters of procedure in cases of treason or misprision of treason, that is to say, to the extent specified in the third column of that Schedule. Repeals.

(2) For the removal of doubt it is hereby declared that nothing in the Treason Act, 1800, shall be deemed to have repealed any of the provisions of the Treason Act, 1695, or of the Treason Act, 1708, except the provisions of those Acts specified in the third column of the Schedule to this Act. 7 & 8 Will. 3.
c. 3.
7 Anne c. 21.

3.—(1) This Act may be cited as the Treason Act, 1945.

(2) The Treason Act, 1800, as applied by this Act, shall extend to Northern Ireland.

(3) For the purposes of section six of the Government of Ireland Act, 1920, this Act shall be deemed to be an Act passed before the appointed day. Short title
and appli-
cation to
Northern
Ireland.
10 & 11 Geo. 5.
c. 67.

SCHEDULE.

Section 2.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
28 Hen. 8. c. 7 (I.)	An Act of slander	So much of the Act as extends to Northern Ireland s. 3 of the statute 26 Hen. 8. c. 13.
5 & 6 Edw. 6. c. 11.	An Act for the punishment of diverse treasons.	Section four.
7 & 8 Will. 3. c. 3.	Treason Act, 1695	The whole Act, except sections five and six.

Session and Chapter.	Short Title.	Extent of Repeal.
2 Anne c. 5 (I.)	An Act to make it high treason in this kingdom to impeach the succession to the Crown, as limited by several Acts of Parliament.	Section two.
7 Anne c. 21	Treason Act, 1708	Sections two, four, nine and fourteen.
19 Geo. 2. c. 9	Jurors (Scotland) Act, 1745.	The whole Act.
5 Geo. 3. c. 21 (I.).	An Act for the better regulating of trials in cases of high treason under the statute of 25 Edw. 3.	The whole Act.
6 Geo. 3. c. 53	Treason Act, 1766	The whole Act.
39 & 40 Geo. 3. c. 93.	Treason Act, 1800	In the title, the words "in certain cases"; the preamble; and the words "in compassing or imagining the death of the King"; the words from "where the overt act" to "bodily harm"; and the words from "and none of the provisions" to the end of the Act.
1 & 2 Geo. 4. c. 24.	Treason (Ireland) Act, 1821.	Section two.
6 Geo. 4. c. 22	Juries (Scotland) Act, 1825.	Section twenty-one.
6 Geo. 4. c. 50	Juries Act, 1825	Section twenty-one.
5 & 6 Vict. c. 51	Treason Act, 1842	Section one.
17 & 18 Vict. c. 26.	Treason (Ireland) Act, 1854.	The whole Act.
23 & 24 Geo. 5. c. 36.	Administration of Justice (Miscellaneous Provisions) Act, 1933.	In the First Schedule, the entry relating to the Statute 35 Hen. 8. c. 2.

